



United States
Attorney's Office
District of New Jersey



Bergen County Company Settles Matter Alleging Receipt of Improper CARES Act Loans

Monday, September 22, 2025

For Immediate Release

U.S. Attorney's Office, District of New Jersey

Newark, N.J. – A manufacturer and supplier of concrete formwork, shoring and temporary scaffolding systems based in Fair Lawn, New Jersey entered into a settlement agreement with the United States resolving allegations that the company violated the False Claims Act by taking a Paycheck Protection Program (PPP) loan to which it was not entitled, Acting U.S. Attorney and Special Attorney Alina Habba announced.

According to the allegations in the complaint and the contentions of the United States in the settlement agreement:

In January 2021, Ulma Form Works, Inc. (Ulma) applied for and received a \$2 million PPP loan. Under the eligibility rules in effect at that time, businesses with more than 300 employees were not eligible for PPP loans. Applicants were instructed that the 300-employee limit was inclusive of the applicant's affiliates, including affiliates whose employees were based outside of the United States. In its loan application, Ulma certified that it was eligible for the loan and that it employed no more than 300 employees. However, Ulma was not eligible for its loan because, inclusive of its affiliates and their foreign employees, it had more than 300 employees. After receiving the PPP loan, Ulma sought and received forgiveness of the total amount of the loan, plus interest that had accrued.

Ulma fully cooperated in the investigation and resolution of this matter. In accordance with the terms of the settlement agreement, Ulma will pay the United States \$2,902,795. The settlement resolves a lawsuit filed under the whistleblower provision of the False Claims Act, which permits private parties, called relators, to file suit on behalf of the United States for false claims and share in a portion of the government's recovery. In this matter, the relator is receiving \$290,279 as the share.

Acting U.S. Attorney and Special Attorney Habba credited the special agents from the Small Business Administration, Office of the Inspector General under the direction of Special Agent in Charge Amaleka

McCall-Brathwaite, Eastern Regional Office, and the SBA's Office of General Counsel for their assistance in this matter.

The government is represented by Assistant U.S. Attorney David V. Simunovich of the Health Care Fraud and Opioid Enforcement Unit in Newark.

Anyone with information about allegations of attempted fraud involving COVID-19 can report it by calling the Department of Justice's National Center for Disaster Fraud Hotline at 866-720-5721 or via the NCDF Web Complaint Form at: <https://www.justice.gov/disaster-fraud/ncdf-disaster-complaint-form>.

The *qui tam* case is captioned *United States ex rel. Verity Investigations, LLC v. Ulma Form Works, Inc.*, 25-890 (D.N.J.).

###

Counsel for Ulma Form Works, Inc.: Mark A. Rush, Esq., Pittsburgh, PA

Counsel for Relator Verity Investigations, LLC: Steven M. Shepard, Esq., New York, NY

[ulma.agreement.pdf](#)

Updated September 22, 2025

Topics

- COVID-RELATED FRAUD
- FINANCIAL FRAUD

Component

[USAO - New Jersey](#)

Press Release Number: 25-255

Related Content



Eight Individuals Plead to Roles in \$11 Million Bank Fraud Conspiracy

Eight defendants admitted to their roles in a conspiracy to defraud banks by depositing stolen checks and withdrawing the funds.

August 11, 2026

PRESS RELEASE

Georgia Man Admits to Conspiring to Distribute Fentanyl and to Bank Fraud Crimes

A Georgia man admitted to conspiring to distribute fentanyl, conspiring to defraud banks by negotiating stolen U.S. Treasury checks, and obtaining a fraudulent Paycheck Protection Program loan.

August 11, 2026

PRESS RELEASE

Chinese Manufacturing Subsidiary Settles Paycheck Protection Program Loan Fraud Allegations for Over \$5 Million

A South Carolina corporation entered into a settlement agreement with the United States resolving allegations that the company violated the False Claims Act by applying for and receiving a Paycheck...

August 4, 2026



District of New Jersey

Main Office:

